

CONSTITUTIONAL, STATUTORY + EXECUTIVE BODIES

Finance Commission • PSC • Election Commission • NHRC • CVC • Lokpal & More

Three types of bodies: **Constitutional** (has Articles) • **Statutory** (created by an Act) • **Executive** (created by resolution)

- Headings & Definitions ● Explanations ● Highlighter = Key Facts 🎯 Exam Tip ✗ Common Mistake
🧠 Memory Trick

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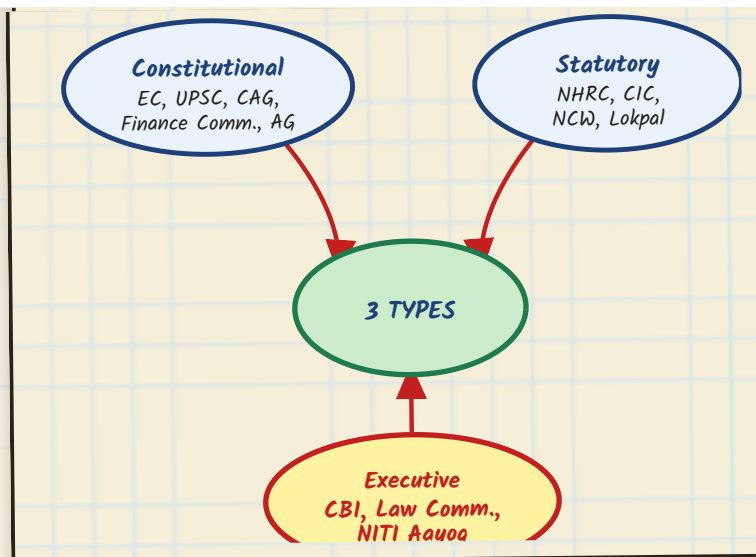
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THREE TYPES OF BODIES

Every important body of the Indian State falls into one of three types:

Type	How It's Created
Constitutional	Has one or more Articles of the Constitution dedicated to it
Statutory	Created through an Act of Parliament/Legislature
Executive	Created by an Executive Resolution — neither in the Constitution nor by an Act

🧠 Fig 1: Three Types of Bodies



Bodies like Election Commission, UPSC, State PSCs, GST Council, National Commission for SC (NCSC), National Commission for ST (NCST), CAG, and Attorney General (AG) are all **Constitutional bodies**.

🎯 Exam Tip

Quick test: "Is there an Article for it?" → Constitutional. "Is there an Act for it?" → Statutory. "Neither?" → Executive.

The Finance Commission – Article 280

Composition: 1 Chairman + 4 other Members. The Chairman is **not necessarily the Finance Minister** — he/she must have knowledge of **public affairs**. Members are **re-eligible for appointment** (they can be reappointed to the same office).

❌ Common Mistake

The **qualifications** of Finance Commission members are **not laid down in the Constitution itself** — the Constitution left it to **Parliament** to prescribe them by law.

Finance Commission Chairmen

1st: K.C. Niyogi

→

14th: Y.V. Reddy

→

15th: N.K. Singh

→

16th: Arvind Panagariya

Members of the 16th Finance Commission: Ajay Narayan Jha, Annie George Mathew, Manoj Panda, Soumya Kanti Ghosh.

Article 281 – Recommendations

The Finance Commission's recommendations go to the **President** (through Parliament, for Centre-related matters) or to the **Governor** (through the State Legislature, for State-related matters). It recommends how the **net proceeds of taxes** (tax collected minus cost of collection) should be **distributed between the Centre and the States**.



Memory Trick

Article 280 = Composition/Definition. Article 281 = Recommendations (to whom + about what — net proceeds of taxes).

Article 279A establishes the **GST Council**, whose Chairman is the **Union Finance Minister**. The GST Council is also a constitutional body.

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PUBLIC SERVICE COMMISSION — PART XIV

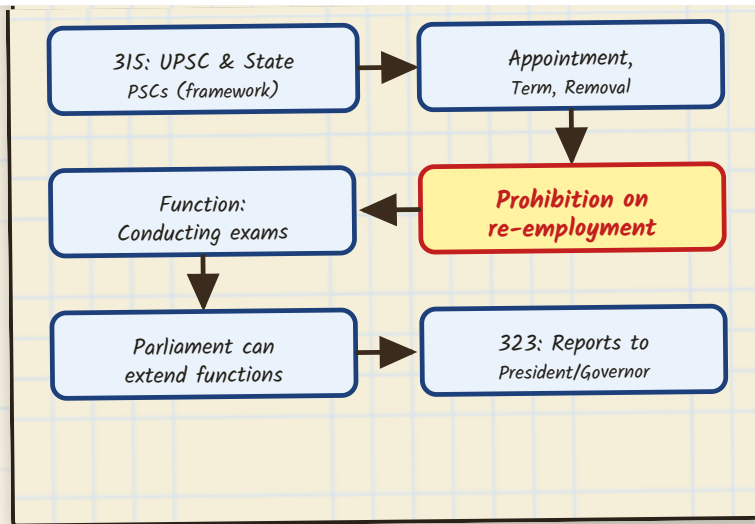
The Public Service Commission is dealt with in **Part XIV, Articles 315 to 323**.

Article 315 – PSC of the Union and States

This does not mean one single commission serves everyone — it just means the **same Part/framework** covers both. In reality there is a **UPSC** (Union Public Service Commission) and separate **State PSCs** for each state.



Fig 2: Articles 315–323 – What Each Covers



What Part XIV Covers

- Appointment and term of office of members
- Removal and suspension of a member
- Power to make regulations regarding conditions of service
- **Prohibition** on a member holding certain offices after ceasing to be a member
- Function: conducting examinations
- Power of **Parliament** to extend the functions of the PSC
- **Article 323**: Reports — given to the **President** (for UPSC) or the **Governor** (for State PSC)

✗ Common Mistake

"Prohibition on holding office" only lets a member move **forward**, never backward — e.g., a State PSC Chairman can become a UPSC member or UPSC Chairman, but a UPSC Chairman/member **cannot go back** to being a State PSC Chairman or member.

Term of Office

Body	Term
UPSC (and CAG)	6 years or 65 years of age, whichever is earlier
State PSC / Joint PSC	6 years or 62 years of age, whichever is earlier

Memory Trick

UPSC & CAG both retire at "6 years or 65" — same number twice helps you remember both together!

Joint Public Service Commission (JPSC)

A **Joint PSC** can be created by the **President** (at the request of two or more states, under Article 315(2)) to serve those states together — it is set up by presidential order rather than existing automatically like the UPSC/State PSCs.



Memory Trick

The Finance Commission is a **quasi-judicial body** too — just like the impeachment process, it involves examining/evaluating claims (Centre vs States' share of taxes) without being a full court.

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ELECTION COMMISSION — PART XV

The Election Commission of India (ECI) is covered in **Part XV, Articles 324 to 329**.

Article 324 — Elections Conducted by ECI

The ECI conducts elections to the offices of **President and Vice President**, and to the **Lok Sabha, Rajya Sabha, State Legislative Assembly, and State Legislative Council**.



Common Mistake

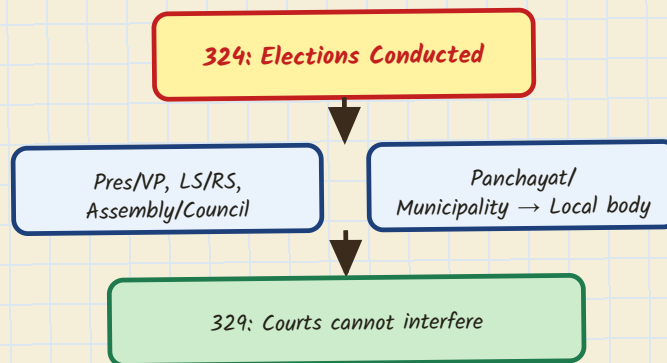
Many think the **State Election Commission** conducts Legislative Assembly/Council elections — it doesn't! Those are conducted by the **Election Commission of India**. Only **Panchayat and Municipality** elections are conducted through the local-body machinery.

Other Key Articles (325–329)

- **Article 325:** No person is ineligible for inclusion in a special electoral roll, or can claim inclusion in a special roll, on grounds of religion, race, or caste

- **Article 326:** Elections held on the basis of **adult suffrage** — every citizen above 18 years of age can vote
- **Article 327:** Power of **Parliament** to make provisions for elections to Parliament and State Legislatures
- **Article 328:** Power of a **State Legislature** to make provisions for elections to that State's own legislature
- **Article 329:** Courts **cannot interfere** in electoral matters

Fig 3: Election Commission Snapshot



Current Chief Election Commissioner: **Gyanesh Kumar**. Other Election Commissioners: **Sukhbir Singh Sandhu** and **Vivek Joshi**. First CEC: **Sukumar Sen**.

National Commissions for SC / ST / OBC

- **Originally (Art 338)** — There was a **Special Officer for SC and ST**, not a commission.
- **65th Amendment** — Converted the Special Officer into a full **National Commission** (still combined, for both SC and ST).
- **89th Amendment, 2003** — **Bifurcated** it into two separate commissions: **NCSC** at Article 338 and **NCST** at Article 338A.
- **102nd Amendment, 2018** — Gave the **National Commission for Backward Classes** (until then a statutory body) **constitutional status** under Article 338B.

📖 The first Backward Classes Commission was chaired by **Kaka Kalelkar**; the second, by **B.P. Mandal**. The 1992 **Indira Sawhney** case (also called the "**Mandal case**")

introduced the concept of creamy layer and non-creamy layer within OBCs.



Memory Trick

Special Officer → (65th Amdt) → Commission → (89th Amdt, 2003) → NCSC (338) + NCST (338A) → (102nd Amdt, 2018) → NCBC gets constitutional status (338B)!

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STATUTORY BODIES

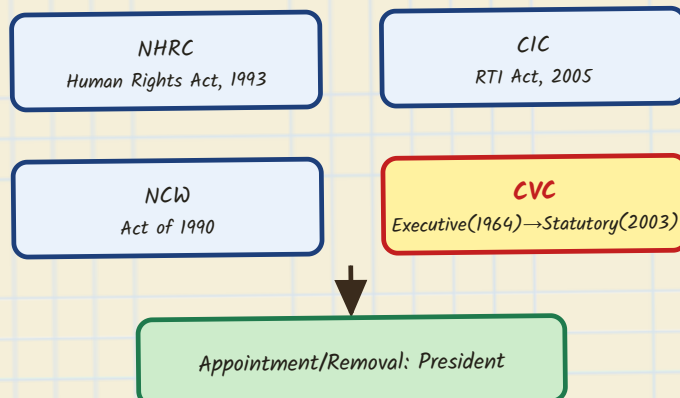
Statutory bodies are created through a law/Act, not the Constitution.

National Human Rights Commission (NHRC)

Created under the Protection of Human Rights Act, 1993. Composition: 1 + 5 — a Chairperson plus five full-time members. The Chairperson must be a retired CJI or a (retired) judge. Term: originally 5 years, reduced in 2019 to 3 years or until age 70, whichever is earlier.



Fig 4: Statutory Bodies at a Glance



Central Information Commission (CIC)

Created under the Right to Information (RTI) Act, 2005.

National Commission for Women (NCW)

Created under an Act of 1990.

Central Vigilance Commission (CVC)



The CVC was originally an **Executive body** — created in 1964 by an **Executive Resolution**, based on the recommendations of the **Santhanam Committee**. It got **statutory status only in 2003**.



Memory Trick

CVC's journey: **1964 Executive body (Santhanam Committee) → 2003 Statutory body**. It "graduated" from executive to statutory — unlike the SC/ST commission which went from officer to commission to constitutional!



Exam Tip

For all these bodies (NHRC, CIC, NCW, CVC), the **appointment and removal of members is done by the President**.

Separately, the Constitution also provides a Special Officer for Linguistic Minorities under **Part XVII**, and lays down **Emergency Provisions in Part XVIII**.



Common Mistake

Don't confuse a body's **origin story** — CVC started executive and became statutory; SC/ST protection started as an "officer" and became constitutional. Track each one's specific journey rather than assuming they all follow the same path.



EXECUTIVE BODIES + THE STATUTORY LOKPAL

Executive bodies are **neither mentioned in the Constitution nor created by any Act** — they exist purely by executive decision.

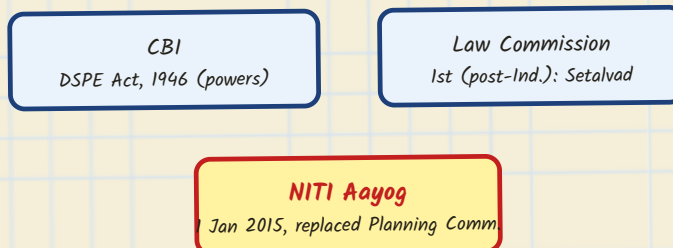
Central Bureau of Investigation (CBI)

The CBI is an **Executive body**. It derives its powers from the **Delhi Special Police Establishment Act, 1946** — but the CBI itself was not directly created by that Act; it operates under the powers that Act provides.

Law Commission

Also an **Executive body**. Post-independence, the first Law Commission's Chairman was **M.C. Setalvad**, who was also **India's first Attorney General**. (In the pre-independence era, Thomas Babington Macaulay had chaired an earlier Law Commission.)

 Fig 5: Executive Bodies



NITI Aayog

Also **Executive** — neither in the Constitution nor created by an Act. Full form: **National Institution for Transforming India**. Formed on **1 January 2015**, replacing the Planning Commission.

- **Chairman:** Prime Minister
- **Vice-Chairperson:** selected by the PM — currently **Suman Bery**
- **CEO:** **B.V.R. Subrahmanyam**

- **Governing Council:** Chief Ministers of all States and UTs (with a legislature); Lieutenant Governors of UTs that don't have a Chief Minister

Exam Tip

"NITI Aayog CEO" is a favourite one-liner question — memorise it directly: **B.V.R. Subrahmanyam**.

Lokpal & Lokayukta – Statutory

The Lokpal and Lokayuktas Act, 2013 created the Lokpal (at the Centre) and Lokayuktas (in the States) — this makes them **Statutory** bodies. They investigate corruption and, notably, can reach even the level of the **Prime Minister and Chief Ministers** — a wider scope than the CBI or CVC.

Composition of Lokpal: **1 + 8** — a Chairperson plus eight members, of whom **50% must be judicial members**, and the other 50% drawn from SC/ST/OBC, minority, and women's backgrounds.

First Lokpal: Pinaki Chandra Ghosh



Current: A.M. Khanwilkar

Common Mistake

Don't lump the Lokpal in with Executive bodies just because it fights corruption like the CBI/CVC — it is **Statutory**, created by the Lokpal and Lokayuktas Act, 2013.

★ Exam-Ready Summary

Body	Type	Source
Finance Commission, UPSC, ECI, NCSC, NCST, NCBC	Constitutional	Article 280, 315, 324, 338, 338A, 338B
NHRC, CIC, NCW, CVC, Lokpal	Statutory	Respective Acts
CBI, Law Commission, NITI Aayog	Executive	No Article, no Act

Memory Trick

"Article = Constitutional, Act = Statutory, neither = Executive" — apply this single test to classify ANY body you're asked about!

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 Print Notes

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